



2026:AHC:143061-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 15707 of 2026

Pradeep Singh

.....Petitioner(s)

Versus

State Of U.P. And 2 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Salilendu Kumar Upadhyay
Counsel for Respondent(s)	:	C.S.C., Sushil Kumar Pandey

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State respondents and Sri Sushil Kumar Pandey, learned counsel for the respondent nos. 2 and 3.

2. This Court on 18.05.2026 has passed the order in following terms :-

"1. Mr. Salilendu Kumar Upadhyay, learned advocate appears on behalf of petitioner and submits, his client had applied for electricity connection. On 4th September, 2024 his client tendered requisite fees and complied with all formalities. Subsequent thereto, electricity connection was given but without installing meter. On 13th September, 2024 enforcement came and alleged theft of electricity, to lodge complaint, registered as F.I.R. On very next day meter was installed. The supply company thereafter went on to raise huge bill. His client having had earlier moved this Court, the demand was reduced a little. He seeks interference to quash order dated 28th March, 2026 passed by respondent no.3 (the Executive Engineer) raising the reduced demand.

2. Mr. Ashim Mukharjee, learned advocate, Standing Counsel, appears on behalf of State. Mr. Sheik Sultan Momin, learned advocate, holding the brief, appears on behalf of respondent nos. 2 and 3 (the supply company). He submits, the writ petition is not maintainable as petitioner can raise dispute under U.P. Electricity Supply Code, 2005.

3. The supply company is to issue written instruction on why the connection was given without installing meter. Mr. Momin submits, connection was not given. Petitioner joined the wires. The supply company to answer on tampering with the seal for purpose of connecting

the wires or why the live wire was not sealed, when no meter had been installed. Furthermore, to lay the wire and not install the meter also requires explanation.

4. List on 10th July, 2026 as fresh. Impugned demand dated 28th March, 2026 will remain stayed till next date of hearing"

3. Today, when the matter was taken up, learned counsel for the respondents submitted that although the connection number was allotted on the date of submission of the application, the electricity connection was energized only after installation of the meter and therefore, it is a case of electricity theft.

4. Per contra, learned counsel for the petitioner has placed reliance upon the certificate titled as "Connection Energisation Certificate" to contend that the electricity connection was, in fact, energized on 04.09.2024, as is evident from the date of release of the connection mentioned in the said certificate. Thus, the controversy as to whether the connection was energized on 04.09.2024 or only after installation of the meter involves a disputed question of fact, which cannot be adjudicated by this Court in exercise of its writ jurisdiction under Article 226 of the Constitution of India.

5. Sri Sushil Kumar Pandey, learned counsel for the respondent nos. 2 and 3, submits that the petitioner has an efficacious statutory remedy of appeal under Section 127(1) of the Electricity Act, 2003. Since the controversy involves adjudication of disputed questions of fact, this Court is of the opinion that the petitioner should be relegated to avail the statutory remedy of appeal provided under the aforesaid provision.

6. In such view of the fact, it is provided that in the event the petitioner prefers an appeal under Section 127(1) of the Electricity Act, 2003 within a period of one month from today, the Appellate Authority shall consider and decide the same expeditiously, preferably within a period of two months from the date of filing of appeal, without entering into the question of limitation.

7. It is further provided that for a period of four months from today or till the decision of the appeal, whichever is earlier, no coercive steps for recovery pursuant to the impugned order dated 28.03.2026 shall be taken against the petitioner, subject to the petitioner complying with the statutory requirement regarding pre-deposit, if any, as contemplated under Section 127 of the Electricity Act, 2003.

8. With the aforesaid observations and directions, the writ petition stands **disposed of**.

July 15, 2026
Gaurav

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)